

July 13, 2026
Dept. 9
Probate Tentative Rulings

8.	25PR0265	ESTATE OF DAVID Z HILL, JR
PETITION FOR ORDERS		

This Petition seeks to recover property that belongs to the estate that is currently in the possession of Jacqueline Thomas, decedent's mother.

Decedent David Hill, Jr. died intestate on September 10, 2023. Letters of Administration were issued to Lori O'Rourke on December 2, 2025. Decedent is survived by a minor child, Aubrey Hill, and Marcy O'Rourke is serving as her guardian *ad litem*.

Decedent's uncle, Curtis Hall, owned certain real property, and when he died intestate in 2009, his estate was admitted to probate in El Dorado County, Case No. PP20090112. Curtis Hall's intestate heirs assigned their interest in the estate to Jacqueline Thomas and decedent David Hill, Jr., such that each was entitled to a 50 percent share of the estate. Petition, Attachment A (Final Order of Distribution for Hall estate). The title of the real property was not changed to reflect this ownership.

The real property went into foreclosure and was sold for \$453,700. The net proceeds after all debts and costs were paid was \$303,992.06, the amount to which David Hill, Jr. and Jacqueline Thomas each were entitled to a 50 percent interest.

In 2023, the bank that sold the real property filed a petition to deposit these funds with the Court (23CV0593) and the Court granted the petition on Jun 23, 2023. Petition, Attachment B. The Court ordered the bank to notice the claimants to the surplus funds, but when the hearing was held on November 20, 2023, no parties appeared and the Court dismissed the case. Decedent had died on September 10, 2023, before the November hearing.

Jacqueline Thomas filed a motion to amend the Order dismissing the case nunc pro tunc on the grounds that the November 20, 2023, hearing was held without notice to the potential claimants due to a clerical error. Petition, Attachment C. Part of that motion included Thomas' Declaration, stating that she knew of no other person with a superior claim to the surplus funds from the sale of the property, and therefore, she claimed all of the funds. *Id.* That motion was heard on October 25, 2024, and as a consequence the Court ordered 100 percent of the surplus funds disbursed to Jacqueline Thomas. Petition, Attachment H.

Petitioner in this case asserts that decedent never received notice of the hearing regarding the surplus funds, and in any event, had died by the time the hearing was held. The proofs of service of notice of Thomas' motion, and also the proof of service of Thomas' claim, were sent to decedent in care of Thomas, at Thomas' address, a P.O. Box in Ukiah. Petition, Attachments D, G.

This Petition seeks the return from Thomas of decedent's 50 percent interest, and the imposition of double damages pursuant to Probate Code §§ 850-859.

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If a court finds that a person has in bad faith wrongfully taken, concealed, or disposed of property belonging to a conservatee, a minor, an elder, a dependent adult, a trust, or the estate of a decedent, or has taken, concealed, or disposed of the property by the use of undue influence in bad faith or through the commission of elder or dependent adult financial abuse, as defined in Section 15610.30 of the Welfare and Institutions Code, the person shall be liable for twice the value of the property recovered by an action under this part. In addition, except as otherwise required by law, including Section 15657.5 of the Welfare and Institutions Code, the person may, in the court's discretion, be liable for reasonable attorney's fees and costs. The remedies provided in this section shall be in addition to any other remedies available in law to a person authorized to bring an action pursuant to this part.

Probate Code § 859.

Petitioner also seeks the imposition of a constructive trust pursuant to Civil Code § 2224 and the governing standards for imposing a constructive trust set forth in the cases of *Calistoga Civic Club v. City of Calistoga* (1983) 143 Cal. App. 3d 111, 116, and *Estate of Yool* (2007) 151 Cal. App. 4th 867, 874.

One who gains a thing by fraud, accident, mistake, undue influence, the violation of a trust, or other wrongful act, is, unless he or she has some other and better right thereto, an involuntary trustee of the thing gained, for the benefit of the person who would otherwise have had it.

Civil Code Section 2224.

Petitioner further requests the Court to award Petitioner attorneys' fees and costs:

Unless it is otherwise provided by this code or by rules adopted by the Judicial Council, either the superior court or the court on appeal may, in its discretion, order costs to be paid by any party to the proceedings, or out of the assets of the estate, as justice may require.

Probate Code § 1002.

Proof of service of notice of the Petition on Jacqueline Thomas by personal service on January 9, 2026, is attached to the Petition as Attachment I, and was filed on January 13, 2026.

At the hearing on February 9, 2026, Jacqueline Thomas expressed an objection and the Court continued the matter, directing her to file a written objection.

On March 23, 2026, the Court continued the hearing as Respondent had filed a response that morning. A Proof of Personal Service for Respondent's Response and Objections was filed

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on the same date. Respondent makes several objections and requests the Court deny Petitioner's requests.

Respondent asserts that Petitioner is time barred from making a claim for any of the Surplus Funds. Respondent claims the foreclosure company made a notification which was recorded with the County Recorder and anyone with a claim had a prescribed time limit to assert an interest, which has now lapsed. Respondent asserts Decedent was alive when the foreclosure company obtained the funds for the foreclosed home and Petitioner thereby waived her ability to make any claim to the Surplus Funds.

TENTATIVE RULING #8:

APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, JULY 13, 2026, IN DEPARTMENT NINE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).

NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.

LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.